

Court No. - 21

Case :- WRIT - C No. - 1881 of 2019

Petitioner :- Arjun Singh

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Ashwani Kumar Mishra

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

Memo of appearance filed by Sri Shrawan Kumar Tripathi, on behalf of respondents no. 1 and 2 today is taken on record.

Learned counsel for the respondents seeks leave of the Court to impleade the State of U.P. as respondent in the writ petition.

Leave is granted.

The petitioner may file an impleadment application within a week.

Put up this case on 7th February, 2019 in additional cause list.

Order Date :- 21.1.2019

Nadeem Ahmad

Court No. - 21

Case :- WRIT - C No. - 1881 of 2019

Petitioner :- Arjun Singh

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Ashwani Kumar Mishra

Counsel for Respondent :- Baleshwar Chaturvedi, Shrawan
Kumar Tripathi

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Pankaj Bhatia, J.

Put up this case on 21st February, 2019, in the additional cause
list.

Order Date :- 7.2.2019

SR

Court No. - 21

Case :- WRIT - C No. - 1881 of 2019

Petitioner :- Arjun Singh

Respondent :- Dakshinanchal Vidyut Vitran
Nigam Limited And Another

Counsel for Petitioner :- Ashwani Kumar Mishra

Counsel for Respondent :- Baleshwar
Chaturvedi, Shrawan Kumar Tripathi

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Pankaj Bhatia, J.

Heard learned counsel for the parties.

The present petition has been filed on the allegation that on 27.11.2017 a check meter was installed in the premises of the petitioner and wherein no difference was found in the load and consumption, however, on 28.1.2018, a checking report was filed stating that the petitioner was using electricity through unauthorised means and an FIR was also lodged on 28.1.2018 against the petitioner under section 135 of the Electricity Act, 2003. It has been further alleged that on 06.3.2018 after much efforts the petitioner was provided checking report, enquiry report and a provisional assessment notice dated 03.2.2018. It is further stated that as no final assessment order was passed/served upon the petitioner. He filed Civil Misc. Writ Petition No. 18293 of 2018 whereby this Court permitted the petitioner to file an objection and directions were issued to the respondent authority to decide the matter. After taken into account the objections against the provisional assessment, the petitioner filed his

objection on 06.06.2018, however, the respondent authorities, without giving personal hearing to the petitioner, decided the objections on 11.6.2018. The main thrust of the petitioner is that the procedure adopted by the respondent authorities is violative of principles of natural justice as well as of the provisions of the electricity supply code. The perusal of the order dated 11.6.2018 also reveals that no opportunity of hearing was given to the petitioner.

Considering the specific averments made and the perusal of the order dated 11.6.2018, we permit the petitioner to file a comprehensive application before the respondent no. 2 within two weeks from today along with certified copy of the order and the respondent no. 2 is directed to pass an order after giving an opportunity of hearing to the petitioner within a period of two months. The order dated 11.6.2018 shall abide by the fresh order, so passed by the respondent no. 2, within the time granted.

The writ petition is disposed off in terms of the above referred order.

Order Date :- 21.2.2019
Puspendra